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LINE: 4

23-CIV-03335

WILLIAM ROGERS, ET AL VS. TRANSITAMERICA SERVICES, INC., ET AL

WILLIAM ROGERS
TRANSITAMERICA SERVICES, INC.

ANDREW P MCDEVITT
STEPHANIE L QUINN

DEFENDANT PENINSULA CORRIDOR JOINT POWERS BORD, TRANSSIT AMERICA SERVICES, INC., and HERZOG TRANSIT SERVICES, INC.'S MOTION TO COMPEL PLAINTIFFS TO PRODUCE UNREDACTED CELL PHONE RECORDS

TENTATIVE RULING:

For the reasons stated below, Defendants Transitamerica Services, Inc., Herzog Transit Services, Inc., and Peninsula Corridor Joint Powers Board's Motion to Compel Plaintiffs William Rogers and Sarah Rogers to Produce Unredacted Cell Phone Records is **DENIED**. Plaintiffs' request for monetary sanctions is **GRANTED** in the amount of \$10,060.

BACKGROUND

This is a personal injury and negligence action arising from injuries sustained by Plaintiff William Rogers, an employee of MRS, while working on Caltrain property. Plaintiff fell through timber planking on the Oregon Expressway Bridge onto the Oregon Expressway below on August 25, 2022.

MOTION TO COMPEL

Defendants subpoenaed Plaintiffs' telephone carrier for records reflecting call and text activity from August 24 through August 26, 2022. The carrier declined to produce the records without Plaintiffs' authorization. Code of Civil Procedure section 1985.3, subdivision (f), provides that a subpoena for personal records maintained by a public-utility telephone corporation is not valid or effective unless it includes the consumer's signed consent to release the records. Public Utilities Code section 2891 likewise restricts a telephone corporation from disclosing a residential subscriber's personal calling patterns without written consent.

Following meet-and-confer efforts, Plaintiffs and Defendants agreed that Plaintiffs would authorize production of records for the period beginning at 7:00 p.m. on August 24, 2022 and ending at 3:00 a.m. on August 25, 2022. The carrier thereafter produced records extending beyond that agreed period. Plaintiffs redacted information outside the agreed window and produced the remaining records to Defendants. Because the carrier records were reported in Coordinated Universal Time ("UTC"), Plaintiffs' counsel converted the entries to Pacific Daylight Time ("PDT") in determining which records fell within the agreed production period.

Defendants now seek an order compelling Plaintiffs to produce the entirety of the carrier's unredacted records from August 24 through August 26, 2022. The Motion identifies no discovery request directed to Plaintiffs requiring production of those records and no statutory procedure under which the Court may

compel the broader production sought. To the extent the Motion is intended as one to compel further production in response to a demand for inspection, Defendants have not identified such a demand and have not provided the separate statement required by California Rules of Court, rule 3.1345. The Motion is therefore procedurally deficient.

The Motion also fails on its merits. Defendants do not contend that calls or messages occurring before 7:00 p.m. on August 24 or after 3:00 a.m. on August 25 are themselves relevant to the litigation. Rather, Defendants seek the unredacted records to determine whether Plaintiffs' counsel correctly converted the carrier's UTC entries and properly identified the records falling within the agreed production window. Defendants identify no particular error in that conversion or other evidence establishing that relevant carrier records within the agreed window were improperly redacted. Mere speculation that the conversion may have been performed incorrectly does not warrant disclosure of records outside the agreed scope, particularly where those records contain information concerning Plaintiffs' personal calling patterns.

To the extent Defendants rely upon new evidentiary material submitted with their Reply to establish that certain calls or messages are absent from the production, the Court does not rely upon evidence presented for the first time on reply. In any event, that evidence does not establish that Plaintiffs incorrectly converted the carrier records or improperly withheld a carrier record falling within the agreed period.

Accordingly, Defendants' Motion to Compel is **DENIED**.

SANCTIONS

Plaintiffs request \$10,060 in monetary sanctions against Defendants.

Misuses of the discovery process include "[m]aking or opposing, unsuccessfully and without substantial justification, a motion to compel or to limit discovery." (Code Civ. Proc., § 2023.010, subd. (h).) The Court may impose monetary sanctions consisting of the reasonable expenses, including attorney's fees, incurred as a result of discovery misuse. (Id., § 2023.030, subd. (a); *City of Los Angeles v. PricewaterhouseCoopers, LLP* (2024) 17 Cal.5th 46, 73–74.)

The Court finds that Defendants were not substantially justified in bringing the present Motion. Defendants seek production beyond the scope previously agreed upon by the parties without identifying an authorized discovery procedure supporting the relief requested, without providing a separate statement, and without identifying a specific error in Plaintiffs' production. Further, the statutory scheme expressly recognizes the protected nature of telephone calling-pattern information. On this record, Defendants' unsupported concern that Plaintiffs' counsel may have incorrectly converted UTC to PDT does not provide substantial justification for seeking wholesale production of the unredacted records.

Plaintiffs submit evidence that they reasonably incurred \$10,060 in attorney's fees in opposing the Motion, excluding anticipated future work. (Minoiefar Decl., ¶ 10.) Monetary sanctions must be limited to reasonable expenses actually incurred as a result of the discovery misconduct. (*Tucker v. Pacific Bell Mobile Services* (2010) 186 Cal.App.4th 1548, 1562–1564.)

Accordingly, Plaintiffs' request for monetary sanctions is **GRANTED**. Monetary sanctions in the amount of \$10,060 are imposed jointly and severally against Defendants Transitamerica Services, Inc., Herzog Transit

Services, Inc., and Peninsula Corridor Joint Powers Board. The sanctions shall be paid within 30 days after service of written notice of the Court's order.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiffs shall prepare a written order consistent with the Court's ruling for the Court's signature pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action. The Court directs the parties to San Mateo County Superior Court Local Rule 3.403(b)(iv) regarding the wording of proposed orders.

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LINE: 5

24-CIV-01921

TRUEBECK CONSTRUCTION, INC., ET AL VS. SETH TAYLOR, ET AL

TRUEBECK CONSTRUCTION, INC.
SETH TAYLOR

A ROBERT ROSIN

PLAINTIFF, CROSS COMPLAINANT, and CROSS DEFENDANT, TRUEBECK CONSTRUCTION, INC.'S MOTION OF TRUEBECK CONSTRUCTION, INC. FORAN ORDER BIFURCATING TRIAL

TENTATIVE RULING:

Plaintiff and Cross-Defendant Truebeck Construction, Inc.'s ("Truebeck") Motion for an Order Bifurcating Trial is **DENIED WITHOUT PREJUDICE**.

Truebeck's Requests for Judicial Notice are **GRANTED** as to the existence and contents of the identified court records, but not as to the truth of disputed factual matters contained therein.

BACKGROUND

These consolidated actions arise from disputes concerning SmartLabs' lease and an approximately \$80 million tenant-improvement construction project at 750 Gateway Boulevard in South San Francisco. Truebeck served as general contractor, SmartLabs was the tenant, and Defendant and Cross-Complainant BMR-Gateway of Pacific II LLC ("BMR") owns the property. Truebeck and numerous subcontractors and suppliers assert mechanics liens and related claims arising from approximately \$24.36 million in allegedly unpaid construction work. The litigation also includes claims concerning SmartLabs' lease obligations, financing, alleged misrepresentations, indemnity, alter ego liability, and the conduct of various SmartLabs-related entities, officers, directors, and investors.

Truebeck moves pursuant to Code of Civil Procedure sections 598 and 1048, subdivision (b), to divide trial principally into two phases. Phase 1 would encompass construction, performance, payment, mechanics-lien, prompt-payment, common-count, quantum-meruit and certain related indemnity claims. Phase 2 would encompass various fraud, misrepresentation, promissory-estoppel, alter-ego, interference, lease and indemnity claims and related equitable issues. Truebeck proposes a possible additional phase if punitive damages are reached.

BMR opposes the motion, and Farnam Street Financial has joined the opposition. BMR principally argues that the proposed phases contain overlapping evidence and witnesses and that bifurcation is premature because discovery remains incomplete, multiple motions for summary adjudication remain unresolved, and the operative pleadings and parties have recently changed.